

PHILIPPINE CONSTITUTION

Biak-na-Bato Constitution (1897)

- Established a **Supreme Council, Council of Justice, and Assembly**, modeled after Cuba’s system
- A **provisional constitution** adopted on **November 1, 1897**, but was **never fully implemented** due to the Pact of Biak-na-Bato in December

First — Malolos Constitution (1899)

- Enacted on **January 21, 1899**, with **101 articles** in **14 titles**, influenced by Spanish and Latin American texts
- Declared **popular sovereignty, civil liberties, separation of Church and State**, and established a **parliamentary-style republic**

Second — 1935 Constitution

- Created the **Commonwealth of the Philippines**, modeled on the **U.S. Constitution**, preparing for full independence
- Set up initially a **unicameral legislature**, later amended to **bicameral Congress** and extended voting rights, including **women’s suffrage**

Third — 1943 Constitution

- Drafted under **Japanese occupation**; established a **puppet republic** headed by **President Jose P. Laurel**
- Created a **strong executive**, a **unicameral legislature**, and promoted **Tagalog as the national language**

Fourth — 1973 Constitution

- Promulgated during the **Marcos administration**, shifted to a **parliamentary system** and gave Marcos **expanded executive powers**
- Imposed during **Martial Law** (from September 1972), which **suspended key democratic rights**

Fifth — 1987 Constitution

- Drafted after the **EDSA People Power Revolution**, reinstated a **presidential system** and strengthened **democratic safeguards**
- Emphasizes **sovereignty of the people, human rights, civil liberties**, an independent **Caribbean system**, and includes **18 articles**

ARTICLE XIV

Education, Science and Technology, Arts, Culture, and Sports

Article XIV of the 1987 Philippine Constitution explains the **responsibility of the State** to provide **quality education**, promote **scientific and technological advancement**, support **artistic and cultural development**, and encourage **sports programs**. It ensures that these areas are protected and developed to benefit the people and the country’s future.

Article XIV – Key Highlights

Section	Key Highlights
1	State must ensure quality and accessible education at all levels.
2	Provide free basic education, scholarships, loans , and support vocational/non-formal learning .
3	Curriculum includes patriotism, ethics, human rights, science, skills , and optional religion .
4	State regulates schools , requires Filipino ownership , and gives tax exemptions to nonprofits.
5	Schools must meet regional needs , ensure academic freedom, equity, teacher support , and highest budget priority .
6	Filipino is the national language ; to be developed and used in instruction.
7	Filipino and English are official languages ; regional, Spanish, Arabic may be used.
8	Constitution must be in Filipino and English with translations.

9	National Language Commission to develop and preserve languages.
10	State promotes research, innovation, and tech education .
11	Congress may give incentives for science and tech (e.g., scholarships, tax benefits).
12	State controls technology transfer and encourages local participation .
13	Protects intellectual property of scientists, inventors, and artists.
14	Support Filipino culture and creative freedom .
15	Promote arts, literature , and protect cultural heritage .
16	Cultural treasures protected and made accessible .
17	Recognize and protect indigenous rights and traditions .
18	Ensure equal access to cultural education and research .
19	Promote physical education, sports , and teamwork in schools.

LAWS RELATED TO EDUCATION

Law / Policy	Title	Summary
PD No. 1006	Decree Professionalizing Teaching	Required a bachelor's degree and licensure exam; created National Board for Teachers.
RA No. 7836	Philippine Teachers Professionalization Act of 1994	Strengthened teacher regulation under PRC.
RA No. 4670	Magna Carta for Public School Teachers	Provided rights, benefits, and protections to public teachers.
RA No. 9293	Amendment to RA 7836	Updated qualifications; refresher courses; special permits.
RA No. 10157	Kindergarten Education Act	Made one-year kindergarten compulsory for five-year-olds.
RA No. 9155	Governance of Basic Education Act of 2001	Decentralized DepEd, granted school-based management.
RA No. 10533	Enhanced Basic Education Act of 2013 (K–12)	Added Grades 11–12 and curriculum enhancement.
RA No. 7722	Higher Education Act of 1994	Created Commission on Higher Education (CHED).
RA No. 7796	TESDA Act of 1994	Created TESDA for tech-voc education and skills development.
RA No. 7610	Special Protection of Children Against Abuse, Exploitation and Discrimination Act	Imposed penalties against child abuse and exploitation.
RA No. 7160	Local Government Code of 1991	Gave LGUs more control over local services including education.
RA No. 6728	GASTPE Act	Gave aid to private school students and teachers.
RA No. 8545	Expanded GASTPE Act	Widened assistance and coverage for more learners.

RA No. 7277	Magna Carta for Disabled Persons	Guaranteed equal access and rights for PWDs.
RA No. 9442	Amendment to RA 7277	Added anti-discrimination and benefit provisions for PWDs.
RA No. 1425	Rizal Law	Required teaching of Rizal's life and works.
DepEd Memo 514	Hardship Allowance Memo	Raised hardship pay from 15% to 25%.
RA No. 6713	Code of Conduct and Ethical Standards for Public Officials	Imposed ethics and transparency among public servants.
RA No. 6655	Free Public Secondary Education Act	Made high school tuition-free.
RA No. 8491	Flag and Heraldic Code of the Philippines	Set rules on display/use of national symbols.
RA No. 9647	PNU as National Center for Teacher Education	Declared PNU as center for teacher training.
RA No. 7877	Anti-Sexual Harassment Act of 1995	Prohibited sexual harassment in workplaces and schools.
RA No. 9262	Anti-Violence Against Women and Children Act	Protected women and children from abuse.
RA No. 10627	Anti-Bullying Act of 2013	Required all schools to address bullying cases.
RA No. 10931	Universal Access to Quality Tertiary Education Act	Made tuition free in public colleges/universities.
RA No. 10968	Philippine Qualifications Framework (PQF) Act	Standardized qualification levels across sectors.
RA No. 10912	Continuing Professional Development Act of 2016	Required professionals to earn CPD units.
RA No. 11650	Inclusive Education Act	Required inclusive programs for learners with disabilities.
RA No. 10754	Expanded PWD Benefits Act	Gave PWDs VAT exemption and other privileges.
RA No. 10173	Data Privacy Act of 2012	Protected personal data; established National Privacy Commission.
RA No. 10175	Cybercrime Prevention Act of 2012	Criminalized cyber offenses such as cyberlibel and hacking.
DepEd Order No. 70, s. 2012	Guidelines on Daily Lesson Preparation	Allowed DLL use instead of detailed plans.
BP Blg. 232	Education Act of 1982	Created a unified formal and non-formal education system.
RA No. 9994	Expanded Senior Citizens Act	Provided educational and financial benefits to seniors.
RA No. 8049	Anti-Hazing Law	Banned all forms of hazing in organizations.
RA No. 9163	National Service Training Program Act of 2001	Required ROTC, CWTS, or LTS in college.

RA No. 7798	Education Act Amendments of 1982	Allowed private school creation under legal guidelines.
RA No. 3562	Education for the Blind Act	Guaranteed education for visually impaired students.
RA No. 5250	Special Education Act of 1968	Provided SPED teacher training for 10 years.
RA No. 9344	Juvenile Justice and Welfare Act of 2006	Established youth rehab instead of incarceration.
RA No. 7356	National Commission for Culture and the Arts Act	Formed NCCA and promoted arts in education.
RA No. 92010*	IT Integration Act	Mandated ICT use in public elementary and high schools.
RA No. 10121	Philippine Disaster Risk Reduction and Management Act	Mandated disaster preparedness in schools.
RA No. 6054	Barrio High School Charter	Established rural secondary schools.
RA No. 8525	Adopt-a-School Act of 1998	Encouraged private support for public schools.
RA No. 10963	Tax Reform for Acceleration and Inclusion (TRAIN) Law	Reformed taxes to fund education and other programs.
RA No. 8980	Early Childhood Care and Development Act	Created ECCD system for children ages 0–6.
RA No. 6014	Student Loan Fund Act	Set up loans for higher education.
RA No. 6972	Barangay-Level Total Development and Protection of Children Act	Required barangay day care and welfare programs.
RA No. 10844	DICT Act of 2015	Created DICT to manage ICT integration including in education.
Republic Act No. 11035	Balik Scientist Act	Attracts Filipino scientists working abroad to return home and participate in national research and education efforts.
Republic Act No. 10929	Free Internet Access in Public Places Act	Provides free internet access in public venues like libraries and schools for digital inclusion.
Republic Act No. 9485	Anti-Red Tape Act of 2007	Simplifies government procedures to reduce bureaucratic delays in services, including education administration.
Executive Order No. 66, s. 2012	Class Suspension During Calamities	Authorizes suspension of classes and work during calamities to protect public safety.
Republic Act No. 10687	UniFAST Act	Creates the Unified Student Financial Assistance System, combining student loans, grants, and scholarships.
Republic Act No. 10970	National Teachers' Day Act	Declares October 5 as National Teachers' Day to honor the teaching profession in the Philippines.

Republic Act No. 11713	Excellence in Teacher Education Act of 2022	Strengthens pre-service and in-service teacher education and professional standards.
Republic Act No. 11036	Mental Health Act	Institutionalized mental health services in schools and integrated programs in education.
Republic Act No. 10665	Open High School System Act	Allows flexible and distance learning for secondary education.
Republic Act No. 10647	Ladderized Education Act of 2014	Provides a seamless pathway between tech-voc and higher education.
Republic Act No. 11313	Safe Spaces Act (Bawal Bastos Law)	Penalizes gender-based harassment in public, online, and educational spaces.
Republic Act No. 11480	School Calendar Adjustment Law	Allows changes to the school calendar during emergencies.
DepEd Order No. 42, s. 2017	Philippine Professional Standards for Teachers (PPST)	Establishes national standards for teacher quality and competencies.
DepEd Order No. 31, s. 2012	K to 12 Curriculum Policy Guidelines	Implements the K to 12 curriculum for Grades 1 to 10.
Republic Act No. 11476	GMRC and Values Education Act	Mandates inclusion of GMRC and Values Education in basic education.
CHED Memo Order No. 78, s. 2017	BTLEd Program Policies	Implements guidelines for Bachelor of Technology and Livelihood Education.
CHED Memo Order No. 75, s. 2017	BSEd Program Standards	Sets revised standards for the Bachelor of Secondary Education program.
CHED Memo Order No. 74, s. 2017	BEEd Program Standards	Updates the policies for Bachelor of Elementary Education.
Republic Act No. 137	Board of Textbooks Act	Created the Board of Textbooks for public school textbook approval.
Republic Act No. 7784	Centers of Excellence Act	Establishes COEs and Teacher Education Council.
Republic Act No. 7743	Barangay/Municipality Libraries Act	Mandates public libraries in barangays and municipalities.
Republic Act No. 1265	Compulsory Flag Ceremony Act	Requires schools to conduct regular flag ceremonies.
Republic Act No. 5447	Special Education Fund Act	Creates a fund for special education classroom and program needs.
Republic Act No. 8292	Higher Education Modernization Act of 1997	Modernizes higher education governance and funding.
Republic Act No. 6850	Civil Service Eligibility for Gov't Workers	Grants eligibility to government workers after 7 years.
Republic Act No. 7687	Science and Technology Scholarship Act	Offers scholarships for science and technology students.

Republic Act No. 8190	Priority in School Assignment Act	Gives enrollment priority to barangay residents.
Republic Act No. 7624	Drug Prevention Education Act	Integrates drug awareness in school curricula.
Republic Act No. 4090	State Scholarship Council Act	Creates a national body for state scholarship programs.
Republic Act No. 6139	Tuition Regulation Act	Regulates tuition adjustments in private schools.
PD No. 6-A (1972)	Educational Development Decree	Launches a 10-year educational reform plan.
PD No. 146	Mandatory NCEE	Requires National College Entrance Exam for SHS graduates.
PD No. 451	Regulation of Private Tuition Fees	Government oversight over private school tuition and fees.
PD No. 688	CSC Administers Teacher Exams	CSC given authority over teacher licensure exams.
PD No. 1139 (1977)	Undersecretary for Non-Formal Education	Created a specialized post within DECS.
EO No. 27	Human Rights Education Order	Integrates human rights education in curricula.
EO No. 189	DECS Control of Secondary Teachers	Puts public secondary teachers under DECS.
EO No. 200 Sec. 3	Fundraising Prohibition Order	Prohibits unsanctioned school fundraising activities.
DepEd Order No. 1, s. 1973	Use of Local Textbooks	Mandates use of locally published textbooks.
DECS Order No. 25, s. 1974	Bilingual Education Program	Uses English and Filipino as instruction media.
MEC Order No. 22, s. 1978	Filipino Subject Mandate	Requires six units of Filipino in college.
DECS Order No. 30, s. 1993	NEAT Implementation	Launches the National Elementary Achievement Test.
DECS Order No. 38, s. 1994	NSAT Implementation	Introduces the National Secondary Assessment Test.
CHED Memo Order No. 76, s. 2017	BECEd Program Standards	Sets standards for Bachelor of Early Childhood Education.
CHED Memo Order No. 77, s. 2017	BSNEd Program Standards	Guidelines for training special needs education teachers.
CHED Memo Order No. 79, s. 2017	BTVTed Program Standards	Curriculum for Bachelor of Tech-Voc Teacher Education.
CHED Memo Order No. 80, s. 2017	BPed Program Standards	Guidelines for Physical Education teacher preparation.
CHED Memo Order No. 82, s. 2017	BCAEd Program Standards	Standards for training teachers in culture and arts.